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24-CIV-01784 NATALIYA BANKOVA, ET AL. VS. SAMUEL MARTINEZ

LINE 5

NATALIYA BANKOVA
SAMUEL MARTINEZ

JUAN M. SIMON
IVAN F. HIGUERA

DEFENDANT: SAMUEL MARTINEZ'S MOTION FOR ORDER DEEMING ADMITTED MATTERS SPECIFIED IN REQUESTS FOR ADMISSION (SET ONE) AND FOR MONETARY SANCTIONS [C.C.P. 2033.280]

TENTATIVE RULING:

Defendant Samuel Martinez's filed two Motions to Deem Facts Admitted as to two separate Requests for Admission, Set One, propounded on Plaintiffs Alice and Natalia Bankova on May 15, 2025. Both appear to be unopposed but are nevertheless DENIED without prejudice due to lack of proper service. Defendant apparently failed to properly serve the supporting documents as to either motion. On December 11, 2025 Defendant filed two almost identical proofs of service for the two motions (they appear only to differ as line spacing). In both instances they indicate that Defendant served "NOTICE OF MOTION AND I MOTION FOR ORDER DEEMING I ADMITTED MATTERS I SPECIFIED IN REQUESTS FOR ADMISSION (SET ONE) AND FOR MONETARY I SANCTIONS [C.C.P. § 2033.280]". However, neither proof indicates that Defendant served the Memoranda of Points and Authorities, Declarations or Proposed Orders.

The Court is also uncertain as to whether Defendant's meet and confer efforts were sufficient. While Defendant did email Plaintiffs, when Plaintiffs responded, Defendant apparently failed to follow-up in any manner. While the Court does not criticize Defendant for this, nor excuse Plaintiffs' apparent failure to follow-up, resorting to motions practice without a more vigorous attempt for informal resolution is not a good use of judicial resources. Accordingly, before refiling these Motions, Defendant and Plaintiff are Ordered to have a video or in person meet and confer about both of these motions **as well as Defendant's three additional discovery motions calendared for December 14, 2026**. If the Plaintiffs do not respond to reasonable attempts to schedule the meet and confer in the month of September, Defendant shall email Department 11 (copying Plaintiffs) and request a Case Management Conference. If the meet and confer occurs and fails to resolve all of the motions, Defendant and Plaintiffs are Ordered to reach out to Department 30 and schedule an Informal Discovery Conference on all five motions before refiling any motion. Failure to demonstrate compliance with these Orders may result in the December 14, 2026 Motions being taken off calendar.

Any party who contests a tentative ruling must email Dept11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. The Court will issue the Order.

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LINE 6

NATALIYA BANKOVA
SAMUEL MARTINEZ

JUAN M. SIMON
IVAN F. HIGUERA

DEFENDANT: SAMUEL MARTINEZ'S MOTION FOR ORDER DEEMING ADMITTED MATTERS SPECIFIED IN REQUESTS FOR ADMISSION (SET ONE) AND FOR MONETARY SANCTIONS [C.C.P. 2033.280]

TENTATIVE RULING:

Please refer to the tentative ruling for Line 5, which is hereby incorporated by reference and serves as the tentative ruling for Line 6.
